

Abraham Lincoln

(in)

Our Own Country

A Thesis.

For the Degree of M. L. in
the College of

Literature ^{and} Science

Henry M. Bradsley : 1880.

Ill. Ind. Univ. June 9 '80

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LINCOLN IN OUR OWN COUNTY ***

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Abraham Lincoln in Our Own County.

We visit scenes of historic interest, because we seem to feel that the presence of the heroes, whose fame they help to keep, is there. Our fair West is yet new, and, save the legends of Indian battles and of the mound builders before them, has little of history. But from our state, young as it is, great true men have gone forth; and one who stands above them all, is best known and best honored of them all, was once here in our midst. The plain streets and surroundings have for us an additional interest, since we know that Abraham Lincoln has been here. There are men among us now who have known him and greeted him as honest old Abe Lincoln, the rail-splitter.

It was nearly forty years ago that he first came to attend court here. He was oft times advised to go to Chicago and build up for himself a profitable business, which he was abundantly able to do. Inducements were offered him. But he preferred to ride around the circuit with a crowd of friendly lawyers, telling stories and studying in his odd moments. Of his power in the former direction, we all know. M^cCarthy, in his "History of Our Own Times", in describing Palmerston's power for story-telling compares him with Bismark in his early days, and with our own Lincoln.

Well as Lincoln loved his fun, he was a diligent student. When a boy, he had possessed but few opportunities for getting an education; so that what little he had was picked up at odd moments. He used to carry with him, on the circuit, text-books such as are used in school. At one time when here, he had a geometry, over which he used to pore like an ambitious school boy. At another time, he had a copy of Euclid. The last time he was here, not long before he was elected to the Presidency, he was studying German. He had a little book such as in popular phrase is known as an "easy method." The German sentence was written upon one line; and upon the line below it was the translation in English. As honest in this work as in every thing else, he had prepared a little card with a hole through the centre, just wide enough and long enough to allow one line to be seen at a time. He would lay the card upon his book so that he could see the German sentence; then after

puzzling over it, until he thought he had mastered it, he would slip down the card, and if his translation had been correct, would slap himself upon the knee, evidently well pleased with his work. Under such difficulties as these, the great man drilled his mind. It was a rich heart back of all that made the simple treasures of his mind gleam as they did.

Judge Cunningham has hanging upon the walls at his home, a picture of Lincoln, which shows him as he was known among us. His face was clean shaven, and his dark-brown hair thrown carelessly back from his high forehead. The upper part of his face was handsome; and there was a sort of wistful look about the eyes that would, even in the picture, hold one's attention. The leathery skin was folded upon his face. About the mouth, there was a firmness that gave additional meaning to every feature. Looking upon the face, you would feel yourself drawn to it by a sort of mysterious attraction. His dress showed negligence, yet was always clean. He scarcely ever carried with him but one suit of clothing and hence the following incident:

During the years of his practice here, there was in Urbana a short, stout Jew by the name of Alschuler, who kept a daguerreotype gallery. As Lincoln was becoming somewhat famous, the Jew pressed to come up to the gallery and sit for a picture. Finally, rather pleased himself at the idea, the statesman stepped in one day, when he had gained a little leisure from his work, attired in a long linen coat. Now a linen coat is the worst sort of an affair to have on when one sits for a picture; and so the Jew objected strongly. "But," said Mr. Lincoln, "this is all the coat I have brought with me from home." "Ha! Ha! I have it—I have it," said the artist, after a moment's pause; "You shall wear my coat." Readily assenting to the proposition, Mr Lincoln removed his own coat and put on that of the Jew. It was scarcely an improvement; for the garment of the Jew was, by far, too short, while the sleeves came little beyond his elbows. But this difficulty was soon easily remedied. At the Artist's desire, Mr. Lincoln seated himself in a chair, and after carefully adjusting the coat, put his hands behind him and thus sat for his picture.

From Lincoln's first appearance here until 1859, there appear upon the court records the names of but few lawyers now practicing in our midst. There were others, like Mr. Lincoln, who travelled around the circuit.

Prominent among these were Mr Swett, now of Chicago. Mr. Lamon, David Davis, afterwards judge of the circuit, and O. B. Ficklin, member of Congress from the district south of us. These were a jovial set of men, who knew well how to appreciate Lincoln's stories. The old hotel in Urbana, stood across the street from where the St. Nicholas now stands; and during the noon hour, and oft times until in the night time, passers by could hear the roars of laughter provoked by these stories. Judge Davis used to delight in these as heartily as the best. Coming here from some other court in the circuit on the first evening, so soon as the crowd of lawyers had gathered together at the hotel, Davis would say: "Now, Lincoln let us have *that story*"—and the story once begun, the evening was filled with merriment.

There are some who remember Lincoln as he appeared in court. He was very tall (six feet four), and very awkward. He used to sit with one of his long legs hanging over the other, the toe of the shoe on one locked behind the heel of the other. When he arose to speak, he seemed much embarrassed, and as is normally the case, knew not what to do with his hands. So he had a habit of clasping them very awkwardly over his stomach. As he warmed up, however, he soon forgot his hands; and being freed, they aided him in his delivery. While standing, likely as not, he had one of his long legs slung over the back of a chair; or had his foot placed upon it.

Some lawyers would address the jury in fine, oratorical language. He never made a pretense at eloquence. He used to stand before the jury and talk as one of their number: he was the "thirteenth man" of the jury telling his opinion of the case. Such homely phrases as: "I reckon," made his language familiar. Beginning his argument, he would state that of his opponent fairly and squarely—would state the case so that it would seem he had granted his side all away, then he would turn, and with his ever recurring "*but*" would bring forth his reasons fast and with force. His style of argument was strong and clear. He built his position, as it were, a series of steps. Each point was connected with the one before and after it. Great as was his love of telling stories, he never used them in his speeches at all. Beside the influence of his manner, he won upon a jury by his reputation. Every one believed him honest, and the jury men would sit and look up into his face, drinking every word he uttered for the truth. Henry Clay is famous for the number of murderers whom he saved from a merited doom. I only know of one case

where Lincoln argued eloquently against his conscience, and then he was pleading for the sin of one who had been his friend and benefactor. He may even then have been honest in his plea, believing the boy innocent.

In the Fall of '58, two men, in a grocery store at Sadorus, engaged in a discussion upon politics, became angry, and one, snatching from the counter by his side, a four pound weight, threw at the other and killed him. Ward H. Lamon was at the time Prosecuting Attorney. The widow of the murdered man engaged O. B. Ficklin to aid in the prosecution. Messrs. Lincoln and Swett were the lawyers for the defense. When the time came for the presentation of the argument, Mr. Lincoln, in his turn made his speech. As the trial had proceeded, he had become more and more persuaded that his client deserved severe punishment. His speech was a failure. Judge Davis told him so afterwards, and he acknowledged it. Swett, however, took his turn with a fine argument and the murderer was let off with a few years in the penitentiary. At another time, I am told, having become convinced that he was on the wrong side of the case, he was missing when called for to make his argument. The messenger, sent to search for him, found him in his room. "Tell the Judge," he said, "that I am busy and can't come".

His humor oft times served him in a trial. I find in the "Urbana Union" for March, 4, 1858, a story of his own, to the point. A crowd of men were in an office discussing the fight in Congress upon the "Lecompton Constitution", when Lincoln entered and was asked his opinion on the matter. Having seated himself in a chair, and having thrown one leg over the other in his usual way, he said he could best illustrate his opinion by means of a story. There were two men, he said, in a neighboring county, who had often met at "logger-heads". One day, after an earnest discussion at their border line, one of them, in his anger, leaped over the fence and gave the other a sound thrashing. "I was engaged for the defense. The witness for the prosecution was a very talkative fellow, not confining himself to the mere matter of the questions put, but willing to tell all he knew. When it came my turn to question him, I asked: 'You say you saw the fight?'

'Yes, stranger, I reckon I did'.

'Was it much of a fight?'

'I'll be darned if it wasn't stranger, a right smart fight'.

‘How much ground did the contestants cover over?’

‘About one acre’.

‘About one acre’, I repeated musingly; ‘well now witness, tell me, wasn’t that just about the smallest crop of a fight off, of an acre of ground that you have ever heard of?’ ‘That’s so stranger. I’ll be gol-darned if it wasn’t.’ The jury” said Mr. Lincoln, giving his leg a twitch, and waiting for the roar of laughter to subside, “fined my client just ten cents”.

At another time, Oliver Davis, now judge at Danville, was opposed to him in a case. Davis, in reviewing his opponent’s argument, repeated again and again; Mr. Lincoln holds *this position*, Mr. Lincoln holds *that position*. Finally Lincoln looked up from where he sat, and asked, with a twinkle in his eye: “That was a curious position, wasn’t it?” Coming from any one else, so little a thing had not been noticed; but as it was, the question destroyed a great deal of the power of Mr. Davis’ argument.

Mr. Lincoln never cared to accumulate wealth. His charges were always reasonable. There was once in our midst, a worthy carpenter by the name of Campbell, who had taken a horse in part pay for some work he had done. The horse proved to be unsound; and Campbell sued the man from whom he had obtained it. Lincoln took the case for him, and worked hard all of one day trying it. “I was standing by,” says one, “when Mr. Campbell asked what the fee was. ‘Five dollars will do, I guess,’ said Lincoln.” At one time, Lincoln had a case for the Illinois Central Rail-road Company, and won it. He made his fee one thousand dollars, which the company refused to pay. He sued the company for the money; and during the trial of the case, several lawyers called upon to testify to the value of the service rendered, placed it at five thousand dollars.

There was a man for some time residing in Urbana, who used often to speak of Lincoln’s kindness to him. It seems that the man had become involved in a law suit upon the result of which much depended. He went to several lawyers, who refused to take his case because they doubted his ability to pay. He came to Lincoln and laid the matter before him, showed him that if he lost the case, he was a ruined man. Lincoln undertook the case for him, and won it. One day the man met Lincoln on the street and stopped him to thank him for his services—said he could not pay him then, and did not

know how soon he would be able. "That's all right, my friend, that's all right" said Lincoln, as he grasped the man by the hand. "And would you believe it," the client would add, with tears in his eyes, as he told the incident, "He left five dollars in my hand."

When engaged in an important case, Lincoln was all absorbed in his work. He would walk along the street lost in thought; and would not even notice his best friends. "I have seen him," says one, walk back and forth in the court yard regardless of every thing around him.

He was a very careful lawyer. Long as he had practiced, he would never write the simplest forms without his book before him. He was very kind to young men just beginning their study. One time, when others were laughing at one who was much embarrassed, in making out some forms new to him, Lincoln arose, and speaking kindly to him, showed him what he needed to know. He even spoke encouragingly to those who were just beginning their practice.

Lincoln made several speeches in our county. In the Fall of 1856, he spoke from the court house in Urbana, upon the constitutionality of the action of Congress with regard to slavery in the territory. The county paper of the time speaks highly of the effort of its power and logic, and of the speaker's ability.

At one time he spoke in what is known as the goose-pond church, a little building near the Doane House. During his speech, he had occasion to read from some paper which he had in his possession. His eyesight was beginning to fail him; and it was with great difficulties that he could see to read. He held the paper off at arm's length, and then drew it to him, moving it back and forth. Finally some one back in the crowd yelled out: "Put on your specks." "Ah," said Lincoln reaching out his long bony arm, far as he could, "My eyes are all right, but my arm is too short."

The most important speech that Mr. Lincoln ever made here, was upon Sept. 24, 1858, in the old fair ground. Douglas was here, and spoke upon the 23rd. Lincoln's speech was made in reply to the one he gave. Mr. Lincoln arrived, and was received at the Doane House platform, on the afternoon of the 23rd. It was in regard to the occasion that a characteristic letter was written to Mr. Cunningham, who had invited Mr. Lincoln to

speak here. The letter was written from Ottawa. "I crossed swords," it read "here today with Douglas, for the first time. The fire flew some, but I am happy to say that I am still alive." In the evening, after his arrival, Lincoln was the guest of the Champaign (then West Urbana) Republican club. The night was passed at Mr. Baddely's, the large brick building across the street from the Episcopal church. Until a late hour, the house and yard were filled with citizens. Speeches were made and music had in abundance. On the 24th, at 10 o'clock, the procession formed at the park to march to Urbana. It was the finest procession Champaign has ever witnessed. The deep interest taken in the occasion is made more apparent, when we remember that the time of the year was the worst possible for the getting together of a crowd; that the county fair had just closed, having filled three days with excitement, that there was scarcely a family in the county, in which there was not some sickness; and that Douglas had drained the country the day before. The crowd was immense. "The procession, led by the Urbana Brass Band, German Band and Danville Band, over sixty young ladies on horse-back, with their attendants, thirty-two of whom represented the states of the Union," was over two miles in length. All proceeded to the old fair ground, where a basket picnic was held. "Have the dinner first," said Lincoln to the officer of the day: "Folks will listen to me better for it." The table at which Lincoln sat was well loaded; and the best of the luxuries were placed around his plate. He, however, chose out a turkey leg and biscuit and began to make his meal upon these. Looking around, he saw behind him an old lady known as "Granny Hutchinson," standing looking longingly at the feast. "Here Granny" said Lincoln springing from his seat, "you have my place." And the kind hearted orator sat back upon the root of a tree and finished his turkey leg and biscuit, while "Granny" enjoyed a bountiful dinner. Thus the man's kindness of heart showed itself everywhere. In his speech, he began by asking if Douglas had made his point on that; and having found what arguments the senator had used, he proceeded to answer them in his clear, logical manner.

Douglas used oft times to abuse Lincoln's character, accusing him of having kept a saloon. To such personalities as this, Lincoln seldom deigned to reply. It was in one of his speeches made here that he said: "Douglas has accused me of having kept a saloon. But I have never before mentioned that

during that time, he was my best customer. While I served on one side of the counter, he served on the other.”

On Sept. 6, 1858, Lincoln spoke at Montville. One writing from that place says: “About 10 o’clock, hearing that the delegation from Champaign County was approaching town, a company of thirty-two young men on horse-back, with flags in their hands, under the best of martial regulations, galloped out to meet the Champaignese, whom they found in strong numbers making a procession nearly a mile long, headed by two bands of music.”

Our people took a great interest in Lincoln’s political career. It was at Bloomington that a resolution was passed, previous to the senatorial conflict, that we want a *big* man, with a *big* heart and a *big* intellect to represent this our *big* state. At our own county convention in June ’58, the following resolution was adopted: “That the Hon. Abraham Lincoln is our first, last and only choice to fill the vacancy to occur in the U.S. Senate on the fourth of March next: that we are jealous of his honor and rights; and that we repudiate all influence whether coming from home or abroad to thwart us in this cherished and unalienable purpose of the Republican party of this state.”

Then the thought came that Abraham Lincoln might be our president. “We had the pleasure,” says the editor of the “Central Illinois Gazette”, published at the time in Champaign, “of introducing to the hospitalities of our sanctum, a few days since, the Hon. Abraham Lincoln. Few men can make an hour pass away more agreeably. We do not pretend to know, whether Mr. Lincoln will ever condescend to occupy the White House or not: but if he should, it is a comfort to know that he has established for himself a character and reputation of sufficient strength and purity to withstand the disreputable influences of even *that* locality.”

Speaking of Lincoln’s honesty, the same editor relates an anecdote. It was in Springfield, during the session of a Douglas-Democratic convention. Any man used to wire pulling would have been on hand with his schemes. Lincoln was seen standing in a direction opposite from the convention; and when asked where he was going, replied that it was to attend the funeral of an old neighbor.

A point worthy of notice in Lincoln's character is his temperance. While it was the custom of the lawyers of his association to drink, he never drank with them. Once in a while he would play a game of billiards. "I remember" an old citizen tells me, "the first game I ever played with him. When it came my turn to play, he said to me in a very legal-like manner: 'now if this were my case, I would hit this ball, make it roll against that one, have it hit the cushion, and then roll back against the third ball there'."

The last words of Mr. Lincoln in our county, were uttered Feb'y. 11, 1861, at Tolono. He had been elected President of the United States, and was on his way to Washington. Secession in the South had already begun its work; and all eyes were turned towards the coming President. In passing through Tolono, in response to applause, which hailed his appearance upon the car platform, he said: "I am leaving you on an errand of national importance, attended, as you are aware, with considerable difficulties. Let us believe, as some poet has expressed it: 'Behind the cloud, the sun is still shining.' I bid you an affectionate farewell." The train moved on and vanished in the East; and when next it returned it bore the form of Abraham Lincoln, cold and still, wrapped in black; while his soul had pierced "*the cloud*" and entered into the sunlight beyond.

Abraham Lincoln was not a man of great intellect, but of rich heart powers. In the dark hour of our nation's need he came, found his place and filled it. "Melancholy dropped from him as he walked"; yet all who knew him loved him. There are old grey-headed men and women in our midst, who speak his name with affection; for have they not known him, heard his voice, felt the grasp of his hand, and comprehended his great, warm heart. Such a man has lived and moved among us.

The End.

Transcriber's Note:

Every effort has been made to replicate this text as faithfully as possible, including non-standard placement of quotation marks.

Italic text was underlined in the original.

The following is a list of changes made to the original. The first line is the original line, the second the corrected one.

Page 1:

have for us an additional interest, since we know
have for us an additional interest, since we know

Page 2:

student. When a boy, he had posessed but few
student. When a boy, he had posessed but few
over wich he used to pore like an ambitious school boy.
over which he used to pore like an ambitious school boy.

Page 3:

method" The German sentence was written upon one line;
method." The German sentence was written upon one line;

Page 7:

Begining his argument, he would state that of his
Beginning his argument, he would state that of his

Page 13:

those who were just begining their practice.
those who were just beginning their practice.
House. During his speech, he had occasion to from
House. During his speech, he had occasion to read from

Page 14:

here today with Douglas, for the first time. The fire
"here today with Douglas, for the first time. The fire

Page 20:

sun is still shining.' I bid you an affectionate farewell.
sun is still shining.' I bid you an affectionate farewell."

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